



EMIRATES

CONDITIONS OF CARRIAGE FOR PASSENGERS AND BAGGAGE

**(Note: Depending upon your place of residence, other Conditions of Carriage may apply:
see www.emirates.com)**

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INTRODUCTION

If you have been issued with a ticket for carriage by air by Emirates, you will have a contract of carriage with Emirates. That contract gives you the right to be carried on a flight or series of flights and its terms are governed by:

- the terms and conditions of contract of the Ticket;
- these Conditions of Carriage (if applicable based on your country of residence, otherwise other conditions of carriage will apply);
- applicable Tariffs; and
- our Regulations.

Contents

ARTICLE 1 — WHAT PARTICULAR EXPRESSIONS MEAN IN THESE CONDITIONS.....	3
ARTICLE 2 — WHEN THESE CONDITIONS ARE APPLICABLE	5
ARTICLE 3 — TICKETS	6
ARTICLE 4 — FARES, TAXES, FEES, CHARGES AND EXCEPTIONAL CIRCUMSTANCES SURCHARGES.....	9
ARTICLE 5 — RESERVATIONS	10
ARTICLE 6 — CHECK-IN AND BOARDING.....	13
ARTICLE 7 — REFUSAL AND LIMITATION OF CARRIAGE	13
ARTICLE 8 — BAGGAGE	19
ARTICLE 9 — SCHEDULES, DELAYS, CANCELLATION OF FLIGHTS AND DENIED BOARDING.....	24
ARTICLE 10 — REFUNDS.....	26
ARTICLE 11 — CONDUCT ABOARD AIRCRAFT	28
ARTICLE 12 — SERVICES PROVIDED BY THIRD PARTIES.....	29
ARTICLE 13 — TRAVEL DOCUMENTS, CUSTOMS AND SECURITY INSPECTIONS ...	29
ARTICLE 14 — SUCCESSIVE AIRLINES	31
ARTICLE 15 — LIABILITY FOR DAMAGE	31
ARTICLE 16 — TIME LIMITS FOR BAGGAGE CLAIMS, PROCESSING OF BAGGAGE CLAIMS, AND TIME LIMITS FOR ALL ACTIONS FOR DAMAGES	34
ARTICLE 17 — OUR REGULATIONS	35
ARTICLE 18 — GENERAL	36

ARTICLE 1 — WHAT PARTICULAR EXPRESSIONS MEAN IN THESE CONDITIONS

“We”, “us”, “our” means Emirates.

“You”, “your”, “yourself” means any person (whether adult, child or infant) holding a Ticket to be carried in an aircraft, except members of the crew. See also the definition of “Passenger”.

“Airline Designator Code” means the two or three characters which identify individual airlines in Tickets, timetables, reservation systems and elsewhere.

“Article” means an article of these Conditions of Carriage.

“Authorised Agent” means a passenger sales agent (which can include another airline) we have appointed to represent us in the sale of carriage on our services.

“Baggage” means your personal property accompanying you during your carriage. Unless we say otherwise, this consists of your Checked Baggage and Unchecked Baggage.

“Baggage Check” means those parts of your Ticket which relate to the carriage of your Checked Baggage.

“Baggage Identification Tag” means a document given to you by us to identify your Checked Baggage.

“Banker’s Selling Rate” means the rate at which, for the purpose of the transfer of funds through banking channels (i.e. other than transactions in bank notes, travellers’ cheques and similar banking instruments), a bank will sell a given amount of foreign currency in exchange for one unit (or units) of national currency of the country in which the exchange transaction takes place.

“Checked Baggage” means Baggage we take into our custody for carriage in the hold of an aircraft for which we have issued a Baggage Check or a Baggage Identification Tag or both.

“Check-in Deadline” means the time limit we have set you for completing the process of checking-in and receiving a boarding pass.

“Conditions of Carriage” means these conditions of carriage.

“Conjunction Ticket” means a Ticket issued by us or our Authorised Agent in conjunction with another Ticket which together constitute a single contract of carriage.

“Coupon” means a document marked “Flight Coupon” or “Passenger Coupon” issued by us or our Authorised Agent as part of your Ticket.

“Damage” means death or wounding of a Passenger, or any other bodily injury suffered by a Passenger, caused by an accident on board an aircraft or during any of the operations of embarking or disembarking. It also means damage sustained in the event of the destruction or the total or partial loss of or damage to Baggage which occurs during carriage by air. Additionally, it means damage occasioned by delay in the carriage by air of Passengers or Baggage.

“Day” means any of the seven days of the week. For the purpose of calculating whether you have complied with a notice requirement, we will not count the day on which a notice is sent. For the purpose of determining whether a Ticket is valid, we will not count the day on which the Ticket was issued or the day the first flight began.

“e-Ticket Receipt/Itinerary” means a receipt marked as such or marked “Passenger Receipt/Itinerary” or “Itinerary/Receipt” issued by us or our Authorised Agent and delivered to you by email (or any other electronic means), by hand, by mail, or by courier.

“Flight Coupon” means a document, marked as such, issued by us or our Authorised Agent as part of your Ticket showing the places of departure and destination between which you are entitled to be carried or, alternatively, an electronic entry within our reservations database recording your booking for carriage on a particular flight.

“Force Majeure” means unusual and unforeseen circumstances which you cannot control and the consequences of which cannot be avoided by your taking reasonable care. For the avoidance of doubt, Force Majeure does not include any circumstance related to your ability to arrive at an airport on time for your flight.

“IATA” means the International Air Transport Association.

“ICAO” means the International Civil Aviation Organisation.

“Immediate Family” means your spouse, your children (including adopted children), your parents, your brothers and sisters, your grandparents, your grandchildren, your parents-in-law, your brothers and sisters-in-law and your sons and daughters-in-law.

“Montreal Convention” means the Convention for the Unification of Certain Rules Relating to International Carriage by Air, signed at Montreal on 28 May 1999.

“National Currency Equivalent” means the equivalent value of the local currency of the country in which the compensation is to be paid or in which judgement is to be made.

“Package Travel Directive” means Directive (EU) 2015/2302 of the European Parliament and of the Council of 25 November 2015 on package travel and linked travel arrangements.

“Passenger” means any person (whether adult, child or infant) entitled by a Ticket to be carried in an aircraft. See also the definition for “you”, “your”, “yourself”.

“Passenger Coupon” and **“Passenger Receipt”** mean a document marked as such issued by us or our Authorised Agent as part of your Ticket.

“Regulations” means the rules we have for certain aspects of carriage of Passengers and their Baggage which are described or referred to in more detail in Article 17.

“SDR” means Special Drawing Right as defined by the International Monetary Fund.

“Stopover” means any place set out in your Ticket or shown in our timetables as a scheduled stop (regardless of duration) between the first place of departure and the last place of destination in your Ticket.

“Tariff” means fares for carriage, charges and related Conditions of Carriage and Ticket restrictions (whether published or otherwise available) filed, where required, with a relevant governmental authority.

“Ticket” means an electronic ticket or document evidencing the confirmed reservation which has been issued by us or an Authorised Agent, and which entitles the named Passenger to travel on the flight(s) identified on it.

“Unchecked Baggage” means your Baggage, other than your Checked Baggage, which is carried by you aboard the aircraft.

“U.S.A.” means the United States of America.

“US\$” means United States Dollars.

“Warsaw Convention” means any of the following international instruments of law which apply to your carriage:

- (a) the Convention for the Unification of Certain Rules Relating to International Carriage by Air, signed at Warsaw on 12 October 1929;
- (b) the Warsaw Convention as amended at The Hague on 28 September 1955;
- (c) the Warsaw Convention as amended by Additional Protocol No. 1 of Montreal (1975);
- (d) the Warsaw Convention as amended at The Hague and by Additional Protocol No. 2 of Montreal (1975);
- (e) the Warsaw Convention as amended at The Hague and as amended by Additional Protocol No. 4 of Montreal (1975); or
- (f) the Guadalajara Supplementary Convention (1961).

“Website” means our internet website with the address www.emirates.com.

ARTICLE 2 — WHEN THESE CONDITIONS ARE APPLICABLE

2.1 General

2.1.1 These Conditions of Carriage form part of your contract of carriage with us and apply only to the carriage we provide to you or to carriage on which our Airline Designator Code is indicated in the carrier box of the Ticket for that flight or flight segment, unless Article 2.3 says otherwise. If you are located in the U.S.A., other Conditions of Carriage will apply: see www.emirates.com/us/english.

2.1.2 By booking a flight with us and/or by checking in for a flight with us, you are deemed to have accepted these Conditions of Carriage on behalf of yourself and anyone else covered by your booking.

2.1.3 These Conditions of Carriage may be modified or changed in your favour, but only by a written document signed by one of our managers.

2.2 Code shares

On some services we have arrangements with other airlines known as code shares. This means that even if you have a reservation with us and hold a Ticket showing the “EK” Airline Designator Code for one or more flights, another airline may operate the aircraft. If such arrangements apply to your carriage, the following conditions will apply:

2.2.1 we will advise you of the name of the other airline at the time you make your reservation when you make it with us or, if made through an Authorised Agent, we will endeavour to make sure that the Authorised Agent gives you such information; and

2.2.2 for any such code share flights operated by another airline, these Conditions of Carriage will apply except that the conditions of carriage of the operating carrier will apply to all operational and procedural aspects of the flight, with the result that, for example, provisions relating to baggage acceptance, check-in and boarding, refusal and limitation of carriage, conduct aboard aircraft, and schedules, delays and cancellation of flights may differ from these Conditions of Carriage.

2.3 Overriding law

If these Conditions of Carriage are inconsistent with any Tariff or with laws which apply to your contract of carriage, the Tariff or law will apply. If one of these Conditions of Carriage becomes invalid in this way, the other conditions will still apply.

2.4 Conditions prevail over Regulations

If these Conditions of Carriage are inconsistent with any of our Regulations, these Conditions of Carriage will apply. If part of one of our Regulations becomes invalid in this way, the other parts of our Regulations will still apply.

2.5 English language text prevails

These Conditions of Carriage are reproduced in several languages. If there is any inconsistency between the English text and a non-English text, the English text will apply unless applicable local law requires otherwise. The English text can be viewed on our Website.

ARTICLE 3 — TICKETS

3.1 General

3.1.1 We will provide carriage only to persons who:

- (a)** possess a valid Ticket (which includes the Flight Coupon for that flight, unused Flight Coupons for subsequent flights recorded in the Ticket, and the Passenger Coupon);
- (b)** are named as the Passenger in the Ticket; and
- (c)** produce a valid passport which, in the case of an electronic ticket, must bear a serial number that matches the number specified in the e-Ticket Receipt/Itinerary.

3.1.2 In the case of an electronic ticket, you are required to bring your e-Ticket Receipt/Itinerary or Passenger Receipt with you to the airport as it may be necessary for you to present it to us and to airport immigration and security personnel.

3.1.3 You will not be entitled to be carried on a flight if the Ticket presented is mutilated, spoilt or tampered with, or if it has been altered otherwise than by us or our Authorised Agent. For replacement of a lost or damaged Ticket see Article 3.5.

3.1.4 For the purposes of the Warsaw Convention and the Montreal Convention, an e-Ticket Receipt/Itinerary is deemed to serve as a passenger ticket and a baggage check/document of carriage.

3.1.5 You cannot transfer your Ticket to another person unless you have the right to do so under applicable law (including national law implementing the Package Travel Directive). See Article 3.3 for situations relating to non-use of your Ticket.

3.1.6 Some of our Tickets are sold at special fares which may be partially or completely non-refundable. It is your responsibility, when making your reservation, to consult the conditions applicable to the use of your Ticket. You should also ensure that you have appropriate insurance to cover instances where you are unable to make use of such a Ticket.

3.1.7 The Ticket is and remains at all times our property if issued by us or our Authorised Agent. If the Ticket has been issued by, or on behalf of, another airline, it is and remains the property of that airline.

3.2 Period of validity

3.2.1 Unless otherwise specified in the Ticket, these Conditions of Carriage, or in Tariffs which apply, a Ticket is valid for:

- (a)** one year from the date of issue, if completely unused; or
- (b)** one year from the date you first travelled using the Ticket, provided your first flight took place within one year of the date of issue of the Ticket.

3.2.2 If you are prevented from travelling within the period of validity of the Ticket because we could not confirm a reservation at the time you requested it, we may extend the validity of the Ticket or give you a voluntary refund under Article 10.3, depending on the restrictions (if any) included in the Ticket. Apart from this, we will have no liability to you for any loss or expense whatsoever.

3.2.3 If, after you have begun your carriage, a person you are travelling with on one of our flights dies en route, we will modify your Ticket either by waiving any Ticket restriction requiring you to stay a minimum period at a Stopover, or by extending the validity of your Ticket.

3.2.4 If a member of your Immediate Family dies after you have begun your carriage, we will modify your Ticket either by waiving any Ticket restriction requiring you to stay a minimum period at a Stopover, or by extending the validity of your Ticket for a period no longer than 45 Days from the date of the death. No such modification will be made unless we are provided with a valid death certificate or alternative evidence satisfactory to us.

3.3 Non-use of Ticket

3.3.1 If, before beginning your carriage and using any part of your Ticket, you are prevented from travelling solely by Force Majeure and part or all of the fare for your Ticket is non-refundable, we will provide you with a credit for the non-refundable part of the fare which you can use to purchase a Ticket for yourself or another person for carriage within the next 12 months. No such credit will be given unless you have given us adequate evidence of the Force Majeure event.

3.3.2 If before beginning your carriage and using any part of your Ticket, a member of your Immediate Family dies and you no longer wish to travel, you will be entitled to a refund calculated in accordance with Article 10.2.1(a). No such refund will be made unless we are provided with a valid death certificate or alternative evidence satisfactory to us.

3.3.3 In the event of your death before beginning your carriage and using any part of your Ticket, we will provide a refund of your Ticket calculated in accordance with Article 10.2.2(a) if we are asked to do so. No such refund will be made unless we are provided with a valid death certificate or alternative evidence satisfactory to us. In the event of your death after you have begun your carriage, we will provide a refund for the unused portion of your Ticket calculated in accordance with Article 10.2.2(b) if we are asked to do so. No such refund will be made unless we are provided with a valid death certificate or alternative evidence satisfactory to us.

3.4 Sequence of Flight Coupon use

3.4.1 Your Ticket is valid only for the carriage recorded on the Ticket, from the place of departure via any Stopover(s) to the final place of destination. Your Ticket will lose its validity and will not be honoured by us if all of the Flight Coupons are not used in the sequence stated in the Ticket unless:

- (a)** the fare already paid for the Ticket is the same or more than the fare applicable to the carriage which results from the out of sequence use of the Flight Coupons;

- (b) you have paid any fare differential required for payment by Article 3.4.3; or
- (c) a separate fare has been collected for the unflown sector(s).

3.4.2 Please be aware that some types of changes to your carriage may not result in a change of fare, but that others (for example, changing the place of departure if you do not fly the first segment of your carriage or reversing the direction you travel) can result in a fare increase. Likewise, many fares are valid for carriage only on the dates and for the flights shown on the Ticket and may not be changed at all, or may only be changed if you pay a fare increase to us or our Authorised Agent.

3.4.3 If you want to change the carriage recorded in your Ticket (including use of Flight Coupons out of sequence) you must contact us before departure of any flight concerned. We will work out the revised fare for your changed carriage and give you the choice of accepting and paying the new fare or keeping the carriage recorded in your Ticket. If you decide to accept and pay the new fare, an administration fee may be payable by you if your Ticket is subject to restrictions.

If the change is necessary because a Force Majeure event has occurred, we will use reasonable efforts to transport you to your next Stopover or final destination without recalculation of the fare, but only if you have provided us with adequate evidence of the Force Majeure event.

3.4.4 If you change any part of your carriage or you fail to check-in prior to closing of check-in for your flight without advising us and complying with Article 3.4.3, your unused Flight Coupons will not be valid for travel or eligible for any form of refund until we have, or our Authorised Agent has, assessed the correct price for your actual carriage and you have paid any difference between the fare paid for your Ticket and the total fare applicable to your revised carriage. If the new price is lower than the fare already paid, we or our Authorised Agent will refund the difference, less any applicable administration fee(s).

3.4.5 We will accept each Flight Coupon forming part of your Ticket for carriage in the class of service on the date and flight for which you have a reservation. If a Ticket has been issued without a reservation being made at the time of issue, space may be reserved later subject to our Tariff, applicable Ticket restrictions and the availability of space appropriate to the fare paid on the flight requested.

3.5 Replacement of Ticket

3.5.1 At your request, and if you comply with the requirements of Article 3.5.2, we will replace your Ticket if all or part of it is lost or damaged and cannot be presented for carriage, provided there is adequate evidence, readily ascertainable at the time, that a Ticket valid for the flight(s) in question had been duly issued by us or our Authorised Agent.

3.5.2 Before any Ticket will be replaced by reason of Article 3.5.1, you will sign an agreement to reimburse us for any costs and losses of the type specified in Article 3.5.4 and pay to the airline issuing the replacement Ticket (whether us or another airline) any applicable administration fee for this service. This Article will not apply if replacement of your Ticket is necessary by reason of our or our Authorised Agent's fault or negligence.

3.5.3 If there is no evidence that a Ticket valid for the flight(s) in question was duly issued or you do not sign the agreement required by Article 3.5.2, the airline issuing a replacement Ticket (whether us or another airline) may require you to pay up to the full Ticket fare for such replacement Ticket subject to refund of the fare paid if and when the airline issuing the replacement Ticket becomes satisfied that the replaced Ticket has not been used before the expiry of its validity. Where we are the airline issuing the replacement Ticket, payment of the full Ticket price will be mandatory.

If, in the case of Ticket loss and replacement, you subsequently find the original Ticket before the expiry of its validity and surrender it without further use to the airline which issued the new replacement Ticket (whether us or another airline), your refund will be processed at that time.

3.5.4 Any reimbursement agreement you have signed by reason of Article 3.5.2 will be for an amount up to the fare paid for the original Ticket, but if the original Ticket is subsequently used or cashed in by you, your obligation to reimburse will also include our costs and expenses (including legal fees and expenses) of locating/notifying you and enforcing the agreement together with any applicable administration fee(s).

3.6 Our name and address on Tickets

Our name may be abbreviated to the “EK” Airline Designator Code in the Ticket. Our address is Emirates Group Headquarters, Airport Road, P.O. Box 686, Dubai, United Arab Emirates.

ARTICLE 4 — FARES, TAXES, FEES, CHARGES AND EXCEPTIONAL CIRCUMSTANCES SURCHARGES

4.1 Fares

4.1.1 The fare paid for your Ticket covers carriage of you and your Baggage from the airport at the place of departure to the airport at the place of destination via specified Stopovers at the times and on the dates specified in the Ticket, unless we say otherwise.

4.1.2 Unless we state otherwise, the fare does not include ground carriage between airports or between airports and town terminals.

4.1.3 The fare for your Ticket has been calculated according to our Tariff as it applied on the date payment was made for your Ticket. If you change the itinerary or the dates of your journey, this may affect the price that you have to pay for the Ticket.

4.2 Taxes, fees and charges

4.2.1 You must pay to us the total amount of all applicable taxes, fees and charges imposed on us by a government or other authority, or by the operator of an airport, which we are obliged to collect from you or to pay in respect of your carriage (“**Taxes**”).

4.2.2 When you purchase your Ticket, we will advise you of Taxes not included in the fare, most of which normally will be shown separately on the Ticket.

4.2.3 Taxes imposed on air travel are outside our control and are constantly changing and can be imposed or modified after the date of purchase of your Ticket. If a Tax is imposed or increased after your Ticket has been purchased, you must pay to us any such Tax or any such increase before carriage. This does not apply if you have purchased your Ticket in the capacity of a consumer with your main place of residence in Germany and you are flying to and/or from Germany.

4.2.4 If your Ticket has been purchased from our Authorised Agent who omitted to give details of all applicable Taxes with the result no or insufficient, payment has been made for such Taxes, you must pay the relevant amount at the airport of departure before you will be entitled to carriage.

4.2.5 If any Tax is abolished or reduced after the date of purchase of your Ticket and becomes no longer applicable to all or part of your carriage, a refund can be claimed in respect of any such Tax which has been paid. Please ask us or our Authorised Agent for details of how to claim such refund.

4.2.6 If you do not use your Ticket, you will be entitled to claim a refund of Taxes you have paid, less any applicable administration fee(s), if your Ticket is subject to restrictions. Please ask us or our Authorised Agent for details of how to claim such refund.

4.3 Surcharges in exceptional circumstances

4.3.1 In exceptional circumstances, charges may be imposed on us by third parties which are of a type or amount not normally applicable to our operations (for example, insurance premium supplements or additional security costs triggered by unlawful interference with civil aviation). In addition, we may be subjected to significant increases in operational costs (for example, fuel charges) caused by exceptional circumstances beyond our control.

4.3.2 In such cases, you will be required to pay to us, as fare surcharges, all such charges attributed by us to your carriage (even if imposed after the date of issue of your Ticket). We will contact you with details of any applicable fare surcharges as soon as possible. If we are unable to establish contact using your contact details, we will advise you of any applicable fare surcharge at check-in. You are free to choose not to pay a fare surcharge and receive an involuntary refund of your Ticket in accordance with the provisions of Article 10.2, in which case we will have no other liability to you.

4.3.3 If any exceptional circumstances surcharge ceases to apply to all or part of your carriage, or a lesser amount is due, a refund can be claimed in respect of any such surcharge which has been paid. Please ask us or our Authorised Agent for details of how to claim such refund.

4.4 Currency

Fares, taxes, fees, charges and exceptional circumstances surcharges are payable in the currency of the country in which the carriage commences, converted to the currency of the country of payment (if different) at the applicable Banker's Selling Rate in effect on the date payment is made, unless we or our Authorised Agent require payment in a different currency (for example, because of the non-convertibility of the local currency). We may at our discretion, accept payment in any currency, subject to applicable local law.

ARTICLE 5 — RESERVATIONS

5.1 Reservation requirements

5.1.1 Some fares have conditions attached to them which limit or exclude your right to change or cancel reservations. Details of any such conditions will be provided at the time of booking. Additional protection can usually be obtained by purchasing insurance from a private company.

5.1.2 If you have a medical condition or other condition for which you may require medical assistance or special assistance during embarkation, disembarkation or aboard an aircraft (for example, the circumstances set out in Articles 7.3 to 7.5):

- (a) you must tell us at the time of booking;
- (b) your booking will be logged in our system as provisional; and
- (c) your booking will be converted to a confirmed reservation by us once we are satisfied that you have received any medical clearance required under Article 7 and all conditions attached to such clearance have, or will be, complied with by you.

If you are flying to or from U.S.A., application of local rules may mean that you do not need to comply with all or part of the requirements set out in this Article 5.1.2. For more information, please contact us or visit <https://www.emirates.com/us/english/>.

5.1.3 If Articles 7.3 to 7.5 apply to you, your booking for your reservation must be made through our call centre in accordance with the advance time limits specified in those Articles (namely: 48 hours before flight departure in the case of Articles 7.3.2(a) and (b), and 96 hours before flight departure in the case of Article 7.3.2(c)), otherwise it may not be possible to accept the booking because of lack of time to complete applicable medical clearance requirements.

5.2 Payment requirements

5.2.1 We will cancel your reservation and may allocate your seat to another Passenger if you do not pay the applicable fare (and applicable Taxes and surcharges) for the Ticket prior to the ticketing time limit notified to you by us or our Authorised Agent.

5.2.2 We will cancel your reservation if you have not paid any amounts outstanding to us at the time of check-in and/or boarding. For the avoidance of doubt, this may include any amounts that you owe us for other tickets or products/services that we have provided to you.

5.2.3 We will have no liability to you in the event that we cancel your reservation and deny you carriage in accordance with this Article 5.2 except to provide a refund, which will be deemed as a voluntary refund, in accordance with Article 10.3.

5.2.4 In the event of a clear and obvious pricing error in respect of your Ticket, we reserve the right to request you to make an additional payment for the Ticket. In the event that you choose not to make the additional payment, we will have the right to cancel your Ticket and provide you with an involuntary refund in accordance with Article 10.2.

5.3 Personal data

5.3.1 You understand that we may collect, use and share personal information in connection with your carriage. Our Privacy Policy located at www.emirates.com explains: what personal information we collect and when and why we use it; the legal basis for using personal information; how we share personal information with others; how we use personal information for marketing purposes, profiling and analytics; where personal information is transferred globally; how we protect and store personal information; how we use cookies; the legal rights available to help manage your privacy; and how to contact us if you have any questions related to privacy.

5.3.2 We may also monitor and/or record your telephone conversations with us to ensure consistent service levels, prevent/detect fraud and for training purposes.

5.3.3 We may require the name and contact details of a third party whom we may contact in an emergency. It is your responsibility to ensure that the third party consents to the disclosure of the information provided for that purpose.

5.3.4 If you would like to know what personal data we are holding about you and/or correct the personal data that we hold about you, please contact our local office.

5.4 Seating and onboard features

5.4.1 We cannot guarantee that you will be able to sit in any particular seat (even if you requested or were allocated a specific seat). We reserve the right to change your seat allocation at any time, including after boarding.

5.4.2 We do not guarantee that any particular aircraft type will be used for your carriage or a particular seat layout will be available. As such, the features, services and facilities provided by us (including your seat and the availability of other onboard features) are also not guaranteed.

5.5 Aircraft

5.5.1 We will try to provide the aircraft specified in our timetable (or specified to you at the time of issue of your Ticket) for your carriage, but cannot guarantee any particular aircraft will be used. We can change the aircraft on which you will be carried, whether for operational, safety, security reasons or otherwise.

5.5.2 Very occasionally, it may be necessary for us to temporarily supplement our fleet with aircraft operated for us by another airline. If this applies to any aircraft on which you are due to be carried by us, we will inform you of the identity of the operator of the aircraft, or try to ensure that our Authorised Agents give you such information. We will try also to ensure that you receive the same level of in-flight service, entertainment and baggage allowance advertised for your flight, but cannot guarantee that this will always be possible.

5.6 Reconfirmation of reservations

5.6.1 With limited exceptions, it is not necessary for you to reconfirm onward or return reservations before flying. If we do require you to reconfirm your reservation before a flight, we or our Authorised Agent will advise you when, how and where it should be done.

5.6.2 If you fail to reconfirm a reservation for any flight where we have told you that reconfirmation is necessary, we may cancel all of your onward or return reservations. No refund of the fare paid will be available in respect of such cancelled reservation unless permitted by the conditions applicable to your Ticket.

5.6.3 After we have cancelled your reservation because of your failure to reconfirm your reservation where we have told you that reconfirmation is necessary, we may reinstate your reservation at your request and carry you if there is space on the flight to which your cancelled reservation related. If there is no space available on the flight, we will use reasonable efforts to try to carry you on another of our flights to your next or final destination, but we are not obliged to do so.

5.6.4 You should check the reconfirmation requirements of any other airlines involved in your carriage with them and, where necessary, reconfirm with the airline whose Airline Designator Code is indicated in the Ticket for the flight in question. We will have no liability to you if another airline cancels one or more reservations because you failed to reconfirm that reservation where you were required to do so. Your right to onward travel or a refund will be governed by the conditions of carriage of the other airline.

5.7 Cancellation of onward reservations

5.7.1 We may cancel the unused part of your reservation and not carry you if:

- (a)** you do not check-in for any flight;
- (b)** you fail to comply with the Check-in Deadline; or
- (b)** having checked-in, you fail to present yourself at the boarding gate with your boarding pass within the time limit specified by us at check-in.

5.7.2 We will not cancel your unused reservations pursuant to Article 5.7.1 if you advise us of your intention not to use any part of your reservation before check-in has closed for the relevant flight or, alternatively, before the boarding gate closes if check-in formalities have been completed.

5.7.3 We will not be liable to you for any loss, damage or expense whatsoever resulting from your failure to comply fully with the requirements of Articles 5.6 and 5.7.

ARTICLE 6 — CHECK-IN AND BOARDING

6.1 Check-in Deadlines

You must present yourself for check-in no later than:

- (a)** 1.5 hours (90 minutes) for First or Business Class; and
- (b)** 3 hours for Premium Economy or Economy Class,
prior to the scheduled departure time of your flight.

6.2 The Check-in Deadline for your first flight

Check-in Deadlines are different at some airports. We or our Authorised Agents will advise you of the Check-in Deadline for your first flight with us if it is longer than the normal limit specified in Article 6.1. For any subsequent flights in your journey, you should inform yourself of the Check-in Deadlines by consulting our timetable, or by asking us or our Authorised Agents.

6.3 You must arrive at your boarding gate on time

You must be present at the boarding gate not later than the time specified by us at the time you check-in. If you arrive outside the applicable time limit at the boarding gate, you will be refused carriage and your Checked Baggage will be off-loaded from the aircraft. See also Article 5.7.

6.4 We are not liable if you fail to meet deadlines

We will not be liable to you for any loss or expense whatsoever resulting from your failure to comply fully with this Article 6.

ARTICLE 7 — REFUSAL AND LIMITATION OF CARRIAGE

7.1 Our right to refuse carriage

We have the right to refuse to carry you or your Baggage on any flight (even if you hold a valid Ticket and have a boarding pass) if one or more of the following events has happened or we reasonably believe might happen, it being understood by you that we have no duty to make any enquiries when determining whether we believe an event might happen:

7.1.1 refusal to carry is necessary in order to comply with **(a)** any applicable government laws, regulations, orders or governmental policy; or **(b)** a written request of an authority of the country of departure, transit or destination; or

7.1.2 you commit a criminal offence or reprehensible act during any of the other operations of the flight or linked to the flight; including without limitation during your reservation, check-in, embarkation/disembarkation on your flight, disembarkation from a connecting flight, or on board the aircraft; or

7.1.3 you fail to observe safety or security regulations or instructions of any ground staff or crew member or obstruct or hinder the performance of their duties; or

7.1.4 you use threatening, abusive, insulting or indecent words or behave in a threatening, abusive, insulting or indecent manner to any person, including ground staff, members of the crew or other Passengers

during your flight, during any operation linked to your flight, prior to or during any of the operations of embarkation on your flight (including check-in), during disembarkation from a connecting flight, or on board the aircraft before take-off; or

7.1.5 carriage of you and/or your Baggage may **(a)** endanger the safety, health, hygiene or security of the aircraft, other Passengers or members of the crew; or **(b)** affect the comfort of other Passengers aboard the aircraft; or

7.1.6 you appear to be incapacitated by alcohol or drugs; or

7.1.7 your mental or physical state, including your impairment from alcohol or drugs **(a)** appears to present a hazard or risk to yourself, to Passengers, to the crew, to the aircraft, or any person or property in it; or **(b)** represents a likely or actual source of annoyance or discomfort to other Passengers aboard the aircraft if you were to proceed to travel in the class in which you are booked or in which you have agreed to travel. If you are flying to or from the U.S.A., application of local rules may mean that you do not need to comply with some of the requirements set out in this Article 7.1.7. For more information, please contact us or visit <https://www.emirates.com/us/english/>; or

7.1.8 you refuse to submit to a security check for yourself or your Baggage; or

7.1.9 you fail to provide satisfactory answers to security questions at check-in or the boarding gate; or

7.1.10 you fail a security profiling assessment/analysis; or

7.1.11 you tamper with or remove any security seals on your Baggage or security stickers on your boarding pass; or

7.1.12 you fail to observe our safety, security or passenger comfort instructions concerning, for example, seating, storage of Unchecked Baggage, smoking, consumption of alcohol, use of drugs, dress, or use of electronic equipment (for example, mobile/cellular phones, laptop computers, tablets, wearable technology and smart watches, electronic games or transmitting devices); or

7.1.13 you have made, or attempted to make, a bomb hoax, hijack threat or any other security threat; or

7.1.14 you have: **(a)** not paid in full the applicable fare, taxes, fees, applicable charges or exceptional circumstances surcharges for your carriage; or **(b)** any outstanding debt to us for which you have refused to settle before boarding; or

7.1.15 you appear, in our exclusive opinion, to: **(a)** not meet the visa requirements, **(b)** not have valid or lawfully acquired travel documents, **(c)** have acquired any travel documents or visa by fraudulent means, **(d)** wish to travel to or enter a country through which you may be in transit for which you do not have valid travel documents or meet the requisite visa requirements; or

7.1.16 you **(a)** destroy your travel documents aboard the aircraft or between check-in and boarding, **(b)** refuse to allow us to copy your travel documents, or **(c)** refuse to surrender your travel documents to the flight crew, against receipt, when so requested; or

7.1.17 we have been informed (orally or in writing) by immigration or other authorities of the country **(a)** to which you are travelling, **(b)** through which you may intend to transit, or **(c)** in which you have a Stopover planned; that you will not be permitted entry to such country even if you have valid travel documents; or

7.1.18 you fail, or refuse, to give us information in your possession or available to you which a governmental authority has lawfully asked us to give about you, or it appears to us that any such information you have given is false or misleading; or

7.1.19 you present a Ticket for carriage that: **(a)** appears to have been acquired unlawfully or by fraudulent means (for example, by means of use of a stolen credit or debit card), **(b)** appears to be forged or falsified, or altered without requisite authority, **(c)** has been purchased from or issued by an entity other than us or our Authorised Agent, **(d)** has been reported to us as being mutilated, lost or stolen, or **(e)** is a counterfeit; or

7.1.20 you cannot prove that you are the person named in the Ticket; or

7.1.21 you fail to comply with the requirements set forth in Article 3 concerning, for example, use of Flight Coupons in sequence; or

7.1.22 you do not meet the requirements of Article 7; or

7.1.23 you, (or the person who is legally responsible for you, if you are a child) have failed to comply with the requirements of Article 7.7; or

7.1.24 you, or someone for whom you are responsible who is travelling with you (for example, a child or infant) is not permitted by law, court order or bail conditions to leave the jurisdiction of the place of departure of the aircraft; or

7.1.25 you are, or we reasonably suspect you are, in unlawful possession of drugs or other illegal substances; or

7.1.26 you have; or we reasonably suspect you have; attempted to defraud us or our employees (for example with baggage fraud); or

7.1.27 you have previously been refused carriage by another airline for any reason relating to your behaviour, or you have breached any of the duties imposed on you by Article 11 in relation to previous carriage by us; or

7.1.28 we have notified you that we would not at any time after the date of such notice carry you on our flights; or

7.1.29 you have failed to pay for any goods or services purchased from us;

7.1.30 you fail to comply with the requirements of Article 11; or

7.1.31 you have previously behaved in any of the ways prohibited above; or

7.1.32 you have facilitated or assisted in any of the behaviours prohibited under this Article 7.1.

See also Article 7 and Article 10 concerning the consequences of being refused carriage and Article 18 concerning any decision we make about the application of this Article 7.1 or Article 11 to you.

7.2 Reimbursement of costs

If you are refused carriage for any of the reasons set out in Article 7.1, you will reimburse us for any costs we incur resulting from: **(a)** repair or replacement of property lost, damaged or destroyed by you; **(b)** compensation we have to pay to any Passenger or crew member affected by your actions; and **(c)** delaying

the aircraft for the purpose of removing you and/or your Baggage. We may apply towards such payment or expenditure the value of any unused carriage on your Ticket, or any of your funds in our possession.

7.3 Fitness to fly

7.3.1 Before boarding the aircraft for carriage you must **(a)** be reasonably satisfied that you are medically fit to fly and; **(b)** have no pre-existing medical conditions that may impact you or others on the aircraft during your flight. If you have been advised that you are fit to fly provided certain precautions are taken (for example, use of medication) it is your responsibility to ensure that all such precautions are taken before, during and after your flight (as the case may be). If requested by us, you must produce written evidence of your fitness to fly required by these Conditions of Carriage. To check if evidence of fitness to fly is required, see Articles 7.3 to 7.5, as well as Article 7.3.4 if you are flying to or from the U.S.A.

7.3.2 If doubt exists about your fitness to fly, you may not be accepted for carriage unless you have satisfied one of the following requirements:

- (a)** no later than 48 hours before the flight, you provide us with a medical report issued within the past 10 Days from an appropriately qualified doctor, which confirms your fitness to travel on all flights on which you intend to travel; or
- (b)** no later than 48 hours before the flight, you provide us with a completed Medical Information Form (MEDIF - which is most useful where your fitness to fly is in doubt because of a recent illness, disease, treatment or operation) and we confirm that we are able to transport you; or
- (c)** no later than 96 hours before the flight, you provide us with a Frequent Travellers Medical Card (FREMEC - which is most useful where your fitness to fly is in doubt due to a permanent or chronic illness or disease or you require long term medical treatment) and we confirm that we are able to transport you.

If you are flying to or from the U.S.A., you may be exempt from part or all of these requirements – see Article 7.3.4.

7.3.3 A permission to fly is required from our medical department at least 48 hours before your flight (or such shorter period as we in our absolute discretion may decide) if it appears to us that you may have a disease which meets any of the following criteria:

- (a)** is believed to be actively contagious or communicable and life threatening to other Passengers or crew; or
- (b)** may cause or induce unusual behaviour, or a physical condition, which could have an adverse effect on the welfare and comfort of other Passengers or crew members; or
- (c)** is considered to be a potential hazard to the safety of the flight; or
- (d)** may cause the flight to be diverted or perform an unscheduled stop.

For more information, please contact us or visit <https://www.emirates.com/english/before-you-fly/health/medical-information-form/>.

If you are flying to or from the U.S.A., different rules may apply (see Article 7.3.4 regarding U.S.A. rules).

7.3.4 If you are flying to or from the U.S.A., application of local rules may mean that you do not need to comply with all or part of the requirements set out in Articles 7.3.2 and 7.3.3. For more information, please contact us or visit <https://www.emirates.com/us/english/>.

7.4 Carriage of pregnant Passengers and newborn children

7.4.1 If you are pregnant we will carry you after your 28th week of gestation only if you produce to us a medical report or letter, signed by an appropriately qualified doctor or midwife, stating: **(a)** whether you have a single or multiple pregnancy; **(b)** that your pregnancy is uncomplicated; **(c)** the estimated date of delivery; **(d)** the latest date your doctor expects you to be fit to travel; **(e)** that you are in good health and **(f)** that there is no known reason that would prevent you from flying.

7.4.2 You must submit a Medical Information Form (MEDIF) and obtain prior clearance from our medical department for travel in case of a complicated pregnancy (single or multiple), at any time, even if you meet the gestational age requirement.

7.4.3 We will not carry you: **(a)** in case of a single pregnancy, after the 36th week of gestation and **(b)** in case of a multiple pregnancy, after the 32nd week of gestation.

7.4.4 It is your responsibility to check if Article 7.4.1, 7.4.2 or 7.4.3 applies to you. If you fail to comply with its requirements or you provide incorrect information about your week of gestation, and you subsequently require in-flight medical assistance, or your flight is diverted so that you may receive medical assistance, in connection with your pregnancy, you are liable to reimburse us any costs we incur of the type, for example, specified in Article 7.6 in accordance with the requirements of that Article.

7.4.5 Carriage of newly born infants will generally not be permitted until 7 Days after delivery. Please ask us or our Authorised Agent for further information.

7.5 Special assistance

7.5.1 Prior to issuing your Ticket you will need to obtain prior clearance from our medical department at the time of ticketing and comply with the applicable Regulations if you require special assistance because you:

- (a)** are unable to feed yourself;
- (b)** are unable to use the toilet unassisted;
- (c)** are unable to move around or evacuate the aircraft cabin unassisted; or
- (d)** have special needs requiring special equipment.

If you are flying to or from the U.S.A., you may be exempt from part or all of those requirements – see Article 7.5.5.

7.5.2 If your special assistance requirements change adversely after receiving clearance pursuant to Article 7.5.1 or 7.5.4, you must seek a new clearance prior to your flight from our medical department or from your doctor (in accordance with Article 7.5.4) and comply with all of our applicable Regulations at all relevant times.

7.5.3 If you have been cleared for carriage by our medical department pursuant to Article 7.5.1, you will not subsequently be refused carriage on the basis of your special requirements unless you have failed to comply with these Conditions of Carriage including, for example, Articles 7.1 and 7.3.

7.5.4 An alternative to obtaining prior clearance from our medical department for the purposes of Articles 7.5.1 and 7.5.3 is provision to us at the time of ticketing of an original certificate signed by your doctor certifying that you are capable of completing your carriage safely without requiring extraordinary medical assistance in flight (for example, assistance necessary to feed yourself, or to use the toilet, or to evacuate the aircraft, or to administer medication or treatment to yourself).

7.5.5 If you are flying to or from the U.S.A., application of local rules may mean that you do not need to comply with all or part of the requirements set out in this Article 7.5. For more information, please contact us or visit <https://www.emirates.com/us/english/>.

7.6 Passenger reimbursement of medical expenses

7.6.1 If you become ill during a flight because of (regardless of whether or not you were aware of it):

- (a) a condition pre-existing the flight; or
- (b) your pregnancy,

you will reimburse the costs incurred by us:

- (a) to treat you aboard an aircraft;
- (b) to transport you on the ground;
- (c) to assist in your admission to any jurisdiction or medical facility;
- (d) as a result of any treatment you receive from a third party; and/or
- (e) in diverting any aircraft.

7.6.2 In the event that we divert an aircraft to seek medical assistance, our obligations to you shall be fully discharged and we shall have no liability whatsoever to you. For the avoidance of doubt, Emirates shall owe you no obligation in respect of carriage from the place of medical diversion and the relevant sector(s) of your Ticket shall be forfeited by you.

7.6.3 In addition, you will also pay any costs we have incurred in diverting an aircraft to seek medical assistance if you have contravened Articles 7.3, or 7.4 or 7.5.

7.6.4 We may apply towards payment due to us from you under this Article 7.6 the value of any unused carriage on your Ticket or unused credits to your account with us, or any of your funds in our possession.

7.7 Carriage of unaccompanied children

7.7.1 You will not be accepted for carriage if you are under 5 years of age on the date the flight commences unless you are accompanied on the same flight and in the same compartment by an escort aged 16 years or more (or 18 years or more if the child under 5 years of age requires special attention, for instance by reason of a disability).

7.7.2 If you are between 5 and 16 years of age, we can arrange for an escort, provided we receive notice at least 12 hours prior to travel and subject to certain conditions which can be found on: <https://www.emirates.com/english/family/planning-your-family-trip/unaccompanied-minors/>.

7.7.3 If you are more than 5 years of age, but less than 12 years old on the date the flight commences, you will not be accepted for carriage unless the following conditions are met in full:

- (a) you are accompanied at check-in by a parent, guardian or adult responsible for you who remains in the airport with an allocated member of our staff until you have boarded the aircraft and it has taken-off from the airport, and who can prove to us that you will be met at the destination airport or Stopover airport by another parent, guardian or adult responsible for you (with full details of that person's identity) and into whose custody you can be delivered;
- (b) all necessary documentation has been completed and provided by your parent, guardian or adult responsible for you;
- (c) you have a confirmed reservation for your flight and it is not anticipated by us that the flight will terminate at a place other than its destination or make an unexpected stop at any other place due to weather or other operational conditions; and

- (d) your ticketed carriage does not involve an en route change of airport or a scheduled Stopover exceeding 8 hours in the case of Dubai International Airport or 4 hours in the case of any other airport, unless a parent, guardian or adult responsible for you meets you and takes responsibility for you during the full period of the Stopover(s).

7.8 On board services

For operational reasons, we make no guarantees that:

- (a) in-flight entertainment equipment, WiFi and advertised programmes will be available;
- (b) advertised equipment (including seats and their features) will be available;
- (c) advertised special meals or any other type of meals will always be available and conform to their exact description because they have been prepared by third parties to our order;
- (d) advertised in-flight services will be available; or
- (e) the environment aboard our aircraft will be nut or nut produce free. We do not accept requests for nut free meals.

7.9 Ground services

7.9.1 We do not make any guarantees about the provision/availability of equipment and services on the ground at airports including, for example, fast track services, airport lounges and the facilities available within those lounges. However, if you are flying to or from the U.S.A., application of local rules may mean that certain equipment and services on the ground will be provided to passengers requiring special assistance. For more information, please contact us or visit <https://www.emirates.com/us/english/>.

7.9.2 We do not guarantee that ground services will always conform to their exact description. This is because some services are provided by third parties to our order. See also Article 12 for other provisions concerning services provided by third parties.

7.10 Services and Transfers

Where we provide you with services or transfer services to/from your airport of departure or arrival (the “Service”), we do so subject to the following conditions:

7.10.1 we will not be liable for loss, damage, costs and expenses caused by any delay in the operation of the Service (for example, where such delay results in you missing your flight);

7.10.2 we will not be liable for any death or personal injury occurring during the Service unless you can prove that such death or personal injury resulted from our negligence; and

7.10.3 we will not be liable for any damage to or loss of Baggage (including any theft or pilferage) during the Service unless you prove that such loss/damage results from our negligence. If you are able to prove that your Baggage has been damaged, lost, stolen or pilfered as a result of our negligence, our liability will be limited to the amount of US\$20 per kilogram.

ARTICLE 8 — BAGGAGE

8.1 Free Baggage allowance

You may carry some Baggage free of extra charge. Your free Baggage allowance and restrictions on size are shown in your Ticket or e-Ticket Receipt/Itinerary and are dependent on our Regulations in force on the date of your flight. For more information or a copy of our Regulations, please ask us or our Authorised Agents.

8.2 Excess Baggage

You will have to pay an extra charge for carriage of Baggage in excess of your free Baggage allowance. You will also have to pay an extra charge for carriage of any container with an animal inside unless the animal is a service animal. For details of the rates applicable to carriage of excess Baggage, please ask us or our Authorised Agents.

8.3 Items you must not carry in your Baggage

8.3.1 There are certain items which you must not include in your Baggage. Set out below are prohibitions applicable to Checked and Unchecked Baggage, as well as separate and extra prohibitions applicable to Checked Baggage only and to Unchecked Baggage only. If you fail to comply with any of the applicable rules, you and/or your Baggage may be refused carriage (see also Article 8.5.1). In addition, you may not be entitled to claim compensation if any prohibited item wrongfully included in your Baggage sustains Damage or causes Damage to your Baggage (see Article 15.5).

8.3.2 You must not include any of the following items in your Unchecked Baggage or your Checked Baggage:

- (a) items which are likely to endanger the aircraft or persons or property on board the aircraft, such as those specified in the ICAO Technical Instructions for the Safe Transport of Dangerous Goods by Air, the IATA Dangerous Goods Regulations, and our related Regulations. If you are not familiar with those rules and regulations, please ask us or our Authorised Agents for details;
- (b) items which are prohibited from being carried by applicable laws, regulations, orders or governmental policies of any state to be flown from, to or via;
- (c) items which are reasonably considered by us to be unsuitable for carriage because they are dangerous or unsafe or by reason of their weight, size, shape or character, or which are fragile or perishable having regard to, for example, the type of aircraft being used. Please ask us about any concerns you may have about the suitability of your Baggage before you arrive at the airport;
- (d) items attracting any form of duty if you are travelling as an unaccompanied child under the age of 16; or
- (e) war material. Please ask us if you have any doubt about whether any item constitutes war material.

8.3.3 You must not include in Checked Baggage fragile or perishable items, valuable items (including, for example, money, jewellery, precious metals, works of art), computers, personal electronic devices, stored data, any medication or medical equipment which may be required in-flight or during your trip or which cannot be quickly replaced if lost or damaged, keys, and valuable documents (including, for example, business documents, passports and other identification documents, negotiable papers, securities deeds) or samples.

8.3.4 You must not include in your Unchecked Baggage:

- (a) real, replica or toy weapons, arms and ammunition, explosives or anything containing explosives (for example, Christmas crackers, fireworks or fire crackers) and incendiary materials; knives of any kind/type/shape or size; letter openers; metal cutlery; catapults; slingshots, razor blades and straight razor blades (excluding safety razors and accompanying cartridge blades); tradesmen's tools; darts; scissors; nail files; hypodermic needles and syringes (unless required for medical reasons and accompanied by a medical certificate confirming the medical condition necessitating carriage); knitting needles; corkscrews; sporting bats and clubs (including, for example, baseball and softball bats, golf

- clubs, cricket bats but excluding tennis, badminton and squash racquets); hard sporting balls (including, for example, cricket, field, hockey or billiard, snooker or pool balls); billiard, snooker or pool cues; martial arts devices; and
- (b) any article which in our opinion, or the opinion of airport security personnel, might be used as, or adapted for use as, a weapon with the potential to cause injury or incapacitation or to represent any other security or safety threat.

8.3.5 If an item of Unchecked Baggage becomes Checked Baggage (whether at your request or because we require it), you must immediately remove from it all items which are prohibited from inclusion in Checked Baggage by Article 8.3. If you ask us, we will endeavour to supply you with a carrier bag if you do not have another bag of your own. You may carry such items as Unchecked Baggage, but only if you comply with our requirements regarding contents and size and weight of Unchecked Baggage specified in Article 8.8.

8.3.6 We are not responsible for any item removed from your Checked Baggage or Unchecked Baggage and retained by airport security personnel. It is your responsibility to check the security requirements applicable to your flight and departure airport prior to travel and, if personal items are removed from your Baggage by airport security personnel, it is your responsibility to ensure that you obtain a receipt from the airport security personnel and make arrangements for collection of such items.

8.4 Firearms and dangerous items

8.4.1 If you wish to carry firearms, ammunition and explosives including items containing explosives (for example, Christmas crackers, fireworks or fire crackers) as Checked Baggage it is your responsibility to inform yourself of, and ensure that you have obtained, all required clearances from the government authorities of the country of departure and the country of destination before commencing your carriage.

8.4.2 Firearms, ammunition and explosives including items containing explosives (for example, Christmas crackers, fireworks or fire crackers) will not be accepted as Checked Baggage, unless approved by us no less than 3 Days before your flight. If accepted for carriage, firearms must be unloaded with the safety catch on, and suitably packed and accompanied by all documents legally required by the countries of departure, destination and any Stopovers. Carriage of ammunition is subject to ICAO and IATA regulations as specified in Article 8.3.2(a). Your firearms, ammunitions and explosives will never be carried in the cabin or cockpit of the aircraft.

8.4.3 Weapons such as, for example, antique firearms, swords, knives, toy or replica guns, bows and arrows and similar items may be accepted as Checked Baggage only at our discretion, subject to prior approval by us, but will not be permitted in the cabin or cockpit of the aircraft.

8.4.4 We will have no liability or responsibility where any item accepted under Articles 8.4.2 and/or 8.4.3 is removed from your Checked Baggage and/or retained or destroyed by security personnel, government officials, airport officials, police or military officials or other airlines involved in your carriage.

8.5 Right to refuse carriage

8.5.1 We will refuse to carry Baggage or to continue carrying Baggage which contains any of the items in contravention of Article 8.3, regardless of whether and when we are told, or discover, the presence of any such items. See also Article 8.3.1.

8.5.2 We will refuse to accept Baggage for carriage if we decide that it is unsuitable for carriage, whether because of its size, shape, appearance, weight, content, character, or for safety or operational reasons, or

for the comfort of other Passengers. If you have any doubt about particular items, please ask for guidance from us or our Authorised Agents.

8.5.3 We may refuse to accept Baggage for carriage if we decide that it is not properly and securely packed in suitable containers. If you ask us, we will give you information about packing and containers acceptable to us.

8.5.4 We may refuse to carry Baggage for which you have refused to pay the extra charge defined in Article 8.2.

8.5.5 We may refuse to carry in the hold Baggage that has not been handed over by you prior to the Check-in Deadline.

8.6 Right of search, screen and x-ray

8.6.1 For reasons of safety, health and security, and to check that you are not carrying in your Baggage any items prohibited by these Conditions of Carriage, we may search, screen and x-ray your Baggage. We will try to search your Baggage while you are present, but if you are not readily available we may search it in your absence. If you do not let us conduct all such searches, scans and x-rays, we will refuse to carry you and your Baggage.

8.6.2 You must allow security checks of your Baggage by government officials, airport officials, police or military officials and other airlines involved in your carriage.

8.6.3 If a search, screen or x-ray causes Damage to your Baggage, we will not be liable for the Damage unless it was caused solely by our negligence.

8.6.4 Please note that the security authorities of some countries require that Checked Baggage is secured in such a manner that it can be opened without the possibility of causing damage in the absence of the Passenger. It is your responsibility to make yourself aware of and comply with any such requirements.

8.7 Checked Baggage

8.7.1 You must fasten a tag, or secure a sticker, containing your name, full address and a telephone number at which we can contact you, to and inside each item of Checked Baggage.

8.7.2 When you check-in Checked Baggage, we will give you a Baggage Identification Tag for each piece of your Checked Baggage.

8.7.3 Checked Baggage will normally be carried on the same aircraft as you, but it may be necessary sometimes for it to be carried on another aircraft (for example, for safety, health, security, operational reasons, or due to the size or weight of the Checked Baggage, or non-compliance with relevant parts of these Conditions of Carriage). If we carry your Checked Baggage on another flight, we will deliver it to the address you have provided, unless the law at the place of collection requires you to be present at the airport of arrival for customs clearance or the reason for carriage on another aircraft related to the size or weight of the Checked Baggage or non-compliance with relevant parts of these Conditions of Carriage.

8.7.4 Unless we decide that your Checked Baggage will not be carried on the same flight as you, we will not carry your Checked Baggage if you fail to board the aircraft on which it is loaded or, having boarded, you leave the aircraft before take-off or at a point of transit, without re-boarding.

8.7.5 We will only carry your excess Baggage on the same flight as you if there is suitable space available on the aircraft and you have paid the applicable extra charge for carriage of Baggage in excess of your free Baggage allowance.

8.7.6 You must ensure that your Checked Baggage is sufficiently robust and well secured to withstand the usual and normal rigours of carriage by air without sustaining damage (except for fair wear and tear).

8.8 Unchecked Baggage

8.8.1 We specify maximum dimensions and/or weight for Unchecked Baggage which you carry on to the aircraft. Please ask us for details. All Unchecked Baggage must be small enough to fit under the seat in front of you or inside the overhead storage compartments in the cabin of the aircraft. If your Unchecked Baggage is too big to be stored in this way, or is of excessive weight or considered unsafe for any reason, you must check it in for carriage as Checked Baggage and pay any excess Baggage charges which may be due under Article 8.2 if your free Baggage allowance has already been used up by other Checked Baggage.

8.8.2 If you have a highly valuable item, a musical instrument or diplomatic bag which you wish to carry with us as Unchecked Baggage but it exceeds our size or weight limitations for Unchecked Baggage, you must purchase one or more additional seats (subject to availability) in the same class of travel as you for the purpose of storing such permitted item next to you during your flight. We will not carry as Unchecked Baggage any other type of item which exceeds our size or weight limitations for Unchecked Baggage.

8.9 Collection and delivery of Checked Baggage

8.9.1 Unless Article 8.7.3 requires us to deliver your Checked Baggage to you, you must collect your Checked Baggage as soon as it is made available at your destination or Stopover. If you do not collect it within a reasonable time, we may charge you a storage fee. If you do not collect your Checked Baggage within 3 months from the date it is made available at your destination or Stopover, we may dispose of it and retain for our benefit any proceeds of the disposal without notice or liability to you.

8.9.2 Only the person holding the Baggage Check and the Baggage Identification Tag can claim a piece of Checked Baggage. We accept no responsibility for checking the identity or authority of the person holding the Baggage Check and Baggage Identification Tag or for checking that he/she has any right to collection.

8.9.3 If the person claiming a piece of Checked Baggage cannot produce the required Baggage Check and Baggage Identification Tag, that person must prove that the Baggage is his or hers before we will allow collection. We accept no responsibility for making anything other than limited enquiries of the person claiming the Baggage when assessing the right to collection.

8.10 Animals

We will not accept an animal for carriage unless you have applied for, and obtained, our prior approval and you meet all of the following conditions and our applicable Regulations:

8.10.1 The animal must be properly crated (with necessary supplies of food and water) by you in a suitable container for carriage in the cargo hold of an aircraft in accordance with all applicable legal requirements. We reserve the right to determine the manner of carriage and to limit the number of animals which may be carried on a flight.

8.10.2 The animal is accompanied by, and we are shown, valid health and vaccination certificates, entry permits, transit permits, exit permits and other documents required by countries of departure, entry or transit.

8.10.3 You have paid the charges applicable to containers with animals inside, unless the animal is a service animal.

8.10.4 Unless carriage of your animal is covered by the liability rules of the Warsaw Convention or the Montreal Convention, we will not be responsible for its loss, injury, sickness or death unless caused solely by our negligence.

8.10.5 If an animal is carried by us without being accompanied by all the certificates and permits required by Article 8.10.2, we will have no liability to you for any loss you may suffer and you will pay or reimburse us (on request) for any fines, costs, losses or liabilities imposed on or incurred by us as a result of the absence of one or more required certificates or permits.

If you are flying to or from the U.S.A., application of local rules may mean that you do not need to comply with all or part of the requirements set out in this Article 8.10. For more information, please contact us or visit <https://www.emirates.com/us/english/>.

8.11 Passenger's Obligations

8.11.1 You must be fully aware of the content of all your Baggage.

8.11.2 You must not leave your Baggage unattended from the moment you pack it and not accept items from another Passenger or from any other person.

8.11.3 You should not travel with Baggage entrusted to you by a third party.

ARTICLE 9 — SCHEDULES, DELAYS, CANCELLATION OF FLIGHTS AND DENIED BOARDING

9.1 Schedules

9.1.1 The flight times and durations shown in our timetables are solely intended to inform Passengers of the flights we offer and may change between the date of publication (or issue) and the date you actually travel. We do not guarantee flight times and flight durations to you and they do not form part of your contract of carriage with us.

9.1.2 Before we accept your booking, we or our Authorised Agent will tell you about the departure time of your flight and it will be shown on your Ticket or e-Ticket Receipt/Itinerary. We may need to change the departure time of your flight and/or the departure or destination airport after your Ticket or e-Ticket Receipt/Itinerary has been issued. It is your responsibility to give us or our Authorised Agent contact information so that we or that Authorised Agent can try to notify you of any such change.

9.1.3 You will be entitled to an involuntary refund in accordance with Article 10.2 if we change the departure time, departure airport and/or destination airport after your Ticket has been issued and:

- (a) the change is significant;
- (b) the change is not acceptable to you; and
- (c) we or our Authorised Agent cannot book you on another flight which you are prepared to accept.

Apart from this, we will have no liability to you for any loss or expense whatsoever.

9.2 Remedies for cancellation, rerouting and delays

9.2.1 Sometimes delays in departure times and the time taken for an aircraft to fly to a destination and/or cancellations occur because of circumstances beyond our control (for example, governmental actions, pandemics, bad weather or air traffic control delays or strikes). Further:

- (a) We will have no liability to you in the event of any circumstances beyond our control except as expressly set out otherwise in these Conditions of Carriage.
- (b) We will take all reasonable measures necessary to avoid a material delay in carrying you and your Baggage. These measures may include using an alternative aircraft or arranging for a flight to be operated for us by an alternative airline, or both.

9.2.2 You will be entitled to one of the three available remedies set out in Articles 9.2.2(a) to (c) below if we cancel a flight; fail to operate a flight reasonably according to the schedule; fail to stop at your destination or Stopover destination; or cause you to miss a connecting flight with us or with another airline for which you hold a through booking/confirmed reservation and adequate time existed to make the connection after the scheduled time of arrival of your flight. We will consider your needs when we select from the three available remedies and such remedy selected by Emirates will be made available without extra charge. See also Article 9.2.3 for limitations on your rights and our liability.

- (a) **Remedy One** - we will carry you and your Baggage as soon as we can on another of our flights on which space is available and, where necessary, extend the period of validity of your Ticket to cover that carriage.
- (b) **Remedy Two** - we will re-route you and your Baggage within a reasonable period of time to the destination shown on your Ticket on another of our flights or on the flight of another airline, or by other mutually agreed means and class of carriage. We will also refund you any difference between the fare, taxes, fees, charges and surcharges paid for your carriage and any lower fare, taxes, fees, charges and surcharges applicable to your revised carriage.
- (c) **Remedy Three** - we will give you an involuntary refund in accordance with Article 10.2.

9.2.3 The three remedies in Articles 9.2.2(a) to (c) do not affect any rights you may have under Article 15.6. Those remedies and rights represent the sole and exclusive remedies and rights available to you if your carriage is affected by one of the events listed in Article 9.2.

9.3 Denied boarding

9.3.1 If we cannot carry you in your ticketed class of service on a flight for which you have a confirmed reservation and have met all applicable check-in and boarding deadlines:

- (a) we will carry you on one of our later flights in your ticketed class of service or, if you choose, we will carry you on another of our flights in a different class of service. In the event of a downgrade from your ticketed class of service we will refund you the difference between the applicable fare, taxes, fees, charges and surcharges paid for your ticketed class of service and the fare, taxes, fees, charges and surcharges applicable to the class of service in which you are actually carried; or
- (b) if you choose, we will arrange for you to be carried on another airline so as to enable you to arrive at your destination within a reasonable time of your originally scheduled time of arrival. In such event, these Conditions of Carriage will continue to apply except that the operating carrier's conditions of carriage will apply to all operational and procedural aspects of the transferred flight.

Alternatively, you may choose to receive an involuntary refund in accordance with Article 10.2.

This Article 9.3.1 will not apply if we refuse to carry you for reasons permitted by these Conditions of Carriage (see, for example, Articles 6.4, 7, 8.6.1, 11.5, 13.1.6 and 13.6).

9.3.2 If Article 9.3.1 applies to you, we will pay to you any compensation due to you under applicable law and our denied boarding compensation policy.

9.3.3 Apart from your rights under this Article 9.3, we will have no liability to you for any loss or expense whatsoever. Please ask about our denied boarding compensation policy.

ARTICLE 10 — REFUNDS

10.1 General

10.1.1 We will refund the fare paid for your Ticket, or any unused part of it, together with applicable taxes, fees, charges and exceptional circumstances surcharges in accordance with this Article 10, our fare rules and Tariff.

10.1.2 Unless we say otherwise, we will make a refund only to the person who has paid for the Ticket, provided we are given proof of identification and payment.

10.2 Involuntary refunds

10.2.1 You will be entitled to a refund calculated in accordance with Article 10.2.2 only if we:

- (a) cancel your flight;
- (b) significantly delay your flight or amend your flight departure/arrival airport and Article 9.1.3 applies;
- (c) fail to carry you on a flight for which you have a confirmed reservation and have met the applicable Check-in Deadline and boarding deadline and you have not been refused carriage for reasons permitted by these Conditions of Carriage;
- (d) fail to stop at your destination or Stopover; or
- (e) cause you to miss a connecting flight in circumstances where you hold a confirmed reservation and adequate time existed to make the connection between the originally scheduled time of arrival of your flight and the departure time of the connecting flight.

10.2.2 Your refund in accordance with Article 10.2.1 will be:

- (a) an amount equal to the fare paid (including taxes, fees, charges and exceptional circumstances surcharges paid) if no portion of the Ticket has been used; or
- (b) if a portion of the Ticket has been used, an amount equal to the difference between the fare paid (including taxes, fees, charges and exceptional circumstances surcharges paid) and the correct fare (including taxes, fees, charges and exceptional circumstances surcharges) for travel between the points for which you have used your Ticket.

10.2.3 We will pay a refund according to this Article 10.2 if we refuse you carriage for any of the reasons set out in Article 7.1 or terminate your carriage for any reason set out in Article 11.5, except that you will not be entitled to any refund for any flight for which you are refused carriage or on which, any unacceptable behaviour occurred.

10.2.4 Apart from the refund provided in this Article 10.2, we will have no liability to you for any loss or expense whatsoever. See also Article 7.2 and Article 11.5 (which permits us to use the value of any unused

carriage on your Ticket to reimburse costs payable by you).

10.3 Voluntary refunds

10.3.1 If a refund of the fare for your Ticket is due for reasons other than those set out in Article 10.2, the refund will be:

- (a) an amount equal to the fare paid (including taxes, fees, charges and exceptional circumstances surcharges paid) less any applicable fees if no portion of the Ticket has been used, and any applicable administration fee(s), if your Ticket is subject to restrictions; or
- (b) if a portion of the Ticket has been used, an amount equal to the difference between the fare paid (including taxes, fees, charges and exceptional circumstances surcharges paid) and the correct fare (including taxes, fees, charges and exceptional circumstances surcharges) for travel between the points for which the Ticket has been used, less any applicable fees (including any applicable administration fees), if your Ticket is subject to restrictions.

10.4 Right to refuse refund

10.4.1 We will not give a refund if application for the refund is made more than 2 years from the date of issue of the original Ticket.

10.4.2 We will not give a refund on a Ticket if, when you arrived in a country, you presented the Ticket to us or to government officials as evidence of your future intention to depart from that country, unless you can prove to us that you have permission to remain in the country or that you will leave the country on another airline or by another means of transport.

10.4.3 We will not give a refund on a Ticket if it has been stamped by a governmental organisation as “Not to be Refunded” or if the Ticket is a replacement for a lost or mutilated Ticket which was stamped as “Not to be Refunded” by a governmental organisation, unless you prove to us that you have permission of that governmental organisation to receive a refund.

10.4.4 We will not give a refund on a Ticket for any flight on which you have been refused carriage (for any of the reasons set out in Article 7.1) or from which you have been removed (for any of the reasons set out in Articles 11).

10.5 Currency

We will pay refunds in the same form and currency that was used to pay for your Ticket.

10.6 By whom Ticket refundable

We will pay a voluntary refund on a Ticket only if we or our Authorised Agents issued the Ticket.

10.7 Limitation of your rights

Unless we state otherwise in these Conditions of Carriage, the refund rights set out in this Article 10 represent your only rights against us if your carriage does not take place for any reason whatsoever. This means that we will have no other liability to you for any loss or expense whatsoever.

ARTICLE 11 — CONDUCT ABOARD AIRCRAFT

11.1 General

At all times during your carriage, you have a duty to behave in a manner which is not likely to:

11.1.1 contravene the laws of any state which has jurisdiction over the aircraft;

11.1.2 endanger, or threaten (whether by hoax threats or otherwise) the aircraft or any person or property;

11.1.3 injure or prejudice the health of other persons aboard the aircraft or create the risk or threat of injury or damage to health;

11.1.4 cause distress to, or be complained of as materially objectionable to, other persons aboard the aircraft (such conduct includes, for example, harassment, molestation, sexual assault or abuse);

11.1.5 cause, or be likely to cause, loss of or damage to our property or that of other persons aboard the aircraft;

11.1.6 obstruct, hinder or interfere with the crew in the performance of their duties;

11.1.7 contravene any instruction or direction of the pilot in command, the crew or the airline (whether oral or by notice) lawfully issued for the purpose of the safety or security of the aircraft and of persons or property and/or the comfort or convenience of Passengers, including, instructions concerning safety, security, seating, seat belts, smoking, consumption of alcohol or use of drugs, use of electronic equipment including, but not limited to, cellular telephones, laptop computers, tablets, electronic games or transmitting devices (for example, radio controlled toys and walkie talkies).

See also Article 18 concerning decisions we make about the application of Article 11 to you.

11.2 On board alcohol

You are not allowed to consume alcohol aboard an aircraft (whether purchased as duty free from us or someone else or otherwise obtained) unless it has been served to you by us. We have the right, at any time for any reason, to refuse to serve alcohol or to withdraw alcohol which has been served.

11.3 Smoking policy

Smoking is not permitted on any of our flights.

11.4 Photography

Taking photographs/videos of any person or of equipment onboard our aircraft or during the boarding/disembarking process is not permitted without the express permission of all persons in the photograph/video or the Captain of your flight. In addition, taking photographs/videos on our aircraft may be prohibited at any time on the instructions of the crew. Any member of the crew may request the deletion of images or videos taken unlawfully or without due consent.

11.5 Breach of duty

If we reasonably believe that you have failed to fully observe all of the duties placed on you by Article 11 or Article 7.1:

11.5.1 we may report the matter to any relevant police or other enforcement authority; and

11.5.2 we may take such measures as we consider necessary to prevent the continuation or repetition of the offending conduct including, for example, physical restraint and/or removal of you from the aircraft and/or refusal to carry you after a Stopover (whether made for the purpose of removing you from the aircraft or otherwise); and

11.5.3 we may decide to refuse to carry you at any time in the future; and

11.5.4 you will reimburse us for any costs we incur in order to: (a) repair or replace property lost, damaged or destroyed by you; (b) compensate any Passenger or crew member affected by your actions; and (c) divert the aircraft for the purpose of removing you from the aircraft. We may use the value of any unused carriage on your Ticket or any of your funds in our possession to pay sums due to us from you.

ARTICLE 12 — SERVICES PROVIDED BY THIRD PARTIES

12.1 If we arrange for another company to provide you with surface carriage or other services (for example, a limousine, ground transfer, hotel reservation or accommodation or car rental) or if we issue you with a ticket or voucher relating to any such surface carriage or other services, we are acting only as your agent in making those arrangements or issuing the ticket or voucher. The terms and conditions of the company providing those services will apply to you.

12.2 We will have no liability to you (including no obligation to refund any portion of your Ticket) regarding any surface carriage or other services we arrange for you which are to be provided by another company unless caused solely by our negligence. See Articles 7.8 and 7.9 for other provisions concerning services provided by third parties.

ARTICLE 13 — TRAVEL DOCUMENTS, CUSTOMS AND SECURITY INSPECTIONS

13.1 General

13.1.1 You must **(a)** check the relevant entry requirements for any country you are visiting (even as a transit passenger); and **(b)** obtain, hold and present to us all passports, visas, health certificates and other travel documents needed for your journey.

13.1.2 You must obey all laws, regulations, orders, and other requirements of all countries you will exit, enter, or through which you will transit during your journey.

13.1.3 For details of required travel documents, it is your responsibility to contact the embassy, consulate or other relevant body of all relevant countries prior to making your booking and at the time of making your booking. If you are not travelling immediately, we advise you to contact the same bodies again before you commence travel to ensure that the requirements which are applicable to you have not changed and that your travel documents remain valid for all flights, destinations and planned Stopovers.

13.1.4 If requested, you must present to us all passports, visas, health certificates and other travel documents needed for your journey, permit us to take photocopies of those documents or deposit those documents with a member of our flight crew aboard your aircraft for safe keeping during a flight against issue to you of a receipt. We have the right to require you to present to us any of these documents at any time before or during your carriage.

13.1.5 We will not be liable to you if you do not have all passports, visas, health certificates and other travel documents needed for your journey or if any of those documents are out of date or if you have not

obeyed all laws, regulations, orders, and other requirements of all countries you will exit, enter, or through which you will transit during your journey.

13.1.6 We will not accept you or your Baggage for carriage if your visas or travel documents do not appear to be in order or if you have not complied with the other requirements of this Article 13.1. We have the right to refuse carriage in this way even if you have started or completed part of your carriage before it becomes clear to us (whether as a result of operation of Article 13.1.4 or otherwise) that you have not complied with Article 13.1.

13.2 Refusal of entry

13.2.1 If you are refused entry to a country (including a country you transit through while en route to your destination), you must pay:

- (a) any fine, penalty or charge assessed against us by the government concerned (including detention costs);
- (b) any detention costs we are charged;
- (c) the fare for transporting you, and an escort if required, from that country; and
- (d) any other costs we reasonably agree to pay.

13.2.2 We will not refund to you the fare paid for carriage to the airport where you were refused entry.

13.3 Passenger responsible for fines, detention costs and other charges

You must reimburse us in full on request the amount of any fine, penalty, detention costs, deportation or removal expenses, escorting charges (if any), cost of ticket(s) issued for you, or any other expenditure we incur because you have failed (voluntarily or involuntarily) to comply with any laws, regulations, orders or other travel requirements of the country you have travelled to or because you have failed to produce the required travel documents on seeking entry to a country or you have been refused admission into the country. We may use the value of any unused carriage on your Ticket or any of your funds in our possession to pay sums due to us from you.

13.4 Return of confiscated travel documents

We will not be liable to you for the return of any of your travel documents, identification documents or Tickets confiscated by a governmental or other authority.

13.5 Customs inspection

If required, you will attend inspection of your Baggage by customs or other government officials. We will not be liable to you for Damage suffered by you in the course of such inspection or as a result of your failure to attend.

13.6 Security inspection

You must allow security checks, searches and scans of you and your Baggage by us, our handling agents, government officials, airport officials, police or military officials and other airlines involved in your carriage. If you do not allow all such security checks, searches and scans to be conducted, we will refuse to carry you and your Baggage. See also Article 8.6 for security checks on your Baggage.

ARTICLE 14 — SUCCESSIVE AIRLINES

Where your carriage is to be performed by us and other airlines in succession under one Ticket, or a Conjunction Ticket, it is likely to be regarded as a single operation for the purposes of the Warsaw Convention and the Montreal Convention. See Article 15.2 for limitations of our liability for such carriage.

ARTICLE 15 — LIABILITY FOR DAMAGE

15.1 Applicable rules

Our liability will be determined by applicable law and these Conditions of Carriage. Where other airlines are involved in your journey, their liability will be governed by applicable law and, unless these Conditions of Carriage state otherwise, their conditions of carriage. Applicable law may comprise the Warsaw Convention or the Montreal Convention and/or laws which apply in individual countries. The Warsaw Convention and the Montreal Convention apply to international carriage as defined in those Conventions. Provisions concerning our liability are set out in Article 15.

15.2 Scope of liability

We will be liable only for Damage occurring during carriage performed by us, or in relation to which we have a legal liability to you. Where we issue a Ticket for carriage by another airline, or we check-in your Baggage for carriage by another airline, we do so only as agent for that airline.

15.3 General limitations

15.3.1 Wherever the Warsaw Convention or the Montreal Convention applies to your carriage, our liability will be subject to the rules and limitations of the applicable Convention.

15.3.2 We will be wholly or partly exonerated from liability to you for Damage if we prove that the Damage was caused or contributed to by your negligence or other wrongful act or omission.

15.3.3 We may be wholly or partly exonerated from liability to you for Damage if we prove that the Damage did not result from our negligence, or that it resulted from the negligence of a third party, or that we took certain measures to avoid the Damage or that it was impossible to take such measures.

15.3.4 We will not be liable for any Damage arising from our compliance with applicable local law or government rules and regulations, or from your failure to comply with the same, except as may be provided by the Warsaw Convention or the Montreal Convention.

15.3.5 Except where we state otherwise in these Conditions of Carriage, we will be liable to you only for compensatory damages you are entitled to recover for proven losses and costs under the Warsaw Convention or the Montreal Convention or local laws which may apply.

15.3.6 Your contract of carriage with us (including these Conditions of Carriage and all applicable exclusions and limits of liability) applies for the benefit of our Authorised Agents, servants, employees and representatives to the same extent as they apply to us. As a result, the total amount recoverable from us and our Authorised Agents, servants, employees and representatives will not be more than our own liability, if any.

15.3.7 Nothing in these Conditions of Carriage:

- (a) gives up or waives any exclusion or limitation of our liability available under the Warsaw Convention, or the Montreal Convention or applicable local law; or
- (b) prevents us from excluding or limiting our liability under the Warsaw Convention, the Montreal Convention, as applicable, or under any other laws which apply, or gives up any defence available to us thereunder against any public social security body or any person liable to pay, or who has paid, compensation for the death, wounding or other bodily injury of a Passenger.

15.4 Death or injury of Passengers

15.4.1 Our liability for Damage sustained by you in the event of death, wounding or other bodily injury caused by an accident is subject to the rules and limitations of the Warsaw Convention or the Montreal Convention and applicable law.

15.4.2 We agree to make advance payments to you or your heirs subject to the following terms and conditions:

- (a) the person receiving payment is a natural person (that is to say, a person in the ordinary sense of the word as opposed to artificial persons or corporations);
- (b) you are, or the person receiving payment is, entitled to compensation under applicable laws;
- (c) payments will be made only in respect of immediate economic needs;
- (d) the amount of a payment will be proportional to the economic hardship being suffered as a result of the death, wounding or bodily injury, save that, in the case of death, it will not be less than the National Currency Equivalent of 16,000 SDRs per Passenger;
- (e) payment will not be made later than 15 Days after the identity of the person entitled to compensation has been established under applicable laws;
- (f) no person will be entitled to receive a payment if he or she or the Passenger to whom the payment relates, caused or contributed to the Damage to which the payment relates by his or her negligence;
- (g) all payments will be made subject to the condition that they will be returned to us on proof that the recipient has not complied with or satisfied Article 15.4.2(b) or he or she or the Passenger to whom the payment relates, caused or contributed to the Damage to which the payment relates;
- (h) payments will be off-set against any subsequent sums payable in respect of our liability under applicable laws;
- (i) except for payment of the minimum sum specified in Article 15.4.2(d) in respect of death, a payment will not exceed the maximum damages for which we may be liable to pay the recipient;
- (j) the making of a payment will not constitute recognition or admission of liability by us;
- (k) no payment will be made unless the person receiving payment gives us a signed receipt which also acknowledges the applicability of Articles 15.4.2(g), (h) and (j); and
- (l) save to the extent in conflict with any applicable law, and subject to payment of the minimum sum specified in Article 15.4.2(d) in the case of death, our decision in relation to the payment amount will be final.

15.5 Baggage

15.5.1 We will not be liable for Damage to Unchecked Baggage unless we caused the Damage by our proven negligence.

15.5.2 We will not be liable for Damage to Baggage resulting from the inherent defect, quality or vice of the Baggage (for example, destruction of, or damage caused by or to, fragile, perishable and other items

which you are prohibited from including in your Baggage by Articles 8.3 and 8.4). Likewise, we will not be liable for fair wear and tear of Baggage resulting from the usual and normal rigours of transportation by air (see also Article 8.7.6 regarding the suitability of your Baggage for transportation by air).

15.5.3 Our liability for Damage to Baggage is limited to the maximum amounts stated in Articles 15.5.4 (a) to (e) unless you prove that the Damage resulted from our act or omission either done with the intention of causing Damage or recklessly and with knowledge that Damage would probably result. You may wish to make a special declaration of value (see Article 15.5.5) before the Check-in Deadline or buy yourself insurance to cover instances where the actual value or replacement cost of your Checked Baggage or Unchecked Baggage exceeds our liability.

15.5.4 Our liability for Damage to Baggage is limited as follows:

- (a) the National Currency Equivalent of 332 SDRs per Passenger applies to Damage to Unchecked Baggage where the Warsaw Convention applies to your carriage;
- (b) the National Currency Equivalent of 17 SDRs per kilogram, or any higher sum agreed by us pursuant to Article 15.5.5, applies to Damage to Checked Baggage where the Warsaw Convention applies to your carriage;
- (c) the National Currency Equivalent of 1,519 SDRs per Passenger, or any higher sum agreed by us pursuant to Article 15.5.5, applies to Damage to both Unchecked and Checked Baggage where the Montreal Convention applies to your carriage;
- (d) the limit of liability for Damage to both Unchecked and Checked Baggage laid down by local law applies to your Baggage where local law applies to your carriage instead of the Warsaw Convention or the Montreal Convention.
- (e) the limits of liability for Damage to both Unchecked and Checked Baggage specified in Articles 15.5.4(a) and (b) apply to Damage to Unchecked Baggage and Checked Baggage respectively where neither the Warsaw Convention nor the Montreal Convention applies to your carriage and no limit of our liability is laid down by applicable local law.

15.5.5 We will increase our liability to you for Damage to Checked Baggage to an amount specified by you and agreed by us at the time you hand your Checked Baggage to us at check-in, but only if you pay to us an additional charge calculated in accordance with our Regulations. This is known as a “special declaration of value”. Please ask us for details of the applicable charges if you want to use this option. We reserve the right to (a) verify the adequacy of the value declared in light of the value of the Baggage and the contents thereof; and (b) cap the level of the declarations at a maximum amount.

15.5.6 If the weight of your Checked Baggage is not recorded on the Baggage Check, we will presume that it is not more than the free baggage allowance for the class of carriage for which you were booked.

15.5.7 Where carriage of your Baggage is performed by successive airlines and either the Warsaw Convention or the Montreal Convention applies to that carriage, you are entitled to make a claim against us if we are the first or last airline in that carriage, even if the Damage to the Baggage did not occur during carriage by us.

15.5.8 If the property contained in your Baggage causes damage to us or a third party, you must compensate us for all losses suffered and costs incurred as a result.

15.6 Delay in the carriage of Passengers and Baggage

Our liability for Damage caused by delay is limited by the Warsaw and the Montreal Convention. In the case of carriage governed by the Montreal Convention, our liability will be limited to (a) the National Currency Equivalent of 6,303 SDRs for Damage occasioned by delay in the carriage of Passengers; and (b) the National Currency Equivalent of 1,519 SDRs for Damage occasioned by delay in the carriage of

Baggage. Where neither of those Conventions applies, we will have no liability to you for delay, except as provided in these Conditions of Carriage.

15.7 Advice to international Passengers on limitation of liability

15.7.1 Where your journey involves an ultimate destination or stop in a country other than the country of origin, you are advised that the Warsaw Convention or the Montreal Convention may be applicable to your entire journey, including any section entirely within the country of origin or destination.

15.7.2 Where the Montreal Convention is applicable, the airline is liable for proven damages for death or personal injury, and certain defences to liability specified by that Convention will be inapplicable for damages not exceeding the National Currency Equivalent of 151,880 SDRs.

15.7.3 Where the Montreal Convention is not applicable, the conditions of carriage of many airlines (including Emirates, as specified in Article 15.4 above) provide that the liability for death or bodily injury will not be subject to any financial limit defined by the Warsaw Convention and that, in respect of such damage up to a maximum of the National Currency Equivalent of 100,000 SDRs, any defence to liability based on proof that they have taken all necessary measures will not apply. Where no such provisions are included in the airline's conditions of carriage, please note that; (i) for such Passengers on a journey to, from or with an agreed stopping place in the U.S.A., the Warsaw Convention and special contracts of carriage embodied in applicable Tariffs provide that the liability of certain airlines, parties to such special contracts, for death of or personal injury to Passengers is limited in most cases to proven damages not to exceed US\$75,000 per Passenger, and that this liability up to such limit will not depend on negligence on the part of the airline; and (ii) for such Passengers travelling by an airline not a party to such special contracts or on a journey to which the Warsaw Convention applies which is not to, from or having an agreed stopping place in the U.S.A., the liability of the airline for death or personal injury to Passengers is limited in most cases to US\$10,000 or US\$20,000; and (iii) some countries impose higher limits than those stated in (i) and (ii).

The names of airlines or parties to such special contracts of the type mentioned in (i) above, are available at all ticket offices of such airlines and may be examined on request.

Additional protection can usually be obtained by purchasing insurance from a private company. Such insurance is not affected by any limitation of the airline's liability under the Warsaw Convention or the Montreal Convention or such special contracts of carriage of the type mentioned in (i) above. For further information, please consult your airline or insurance company representatives.

Note: The limit of liability of US\$75,000 specified in (i) above of this Article 15.7 is inclusive of legal fees and costs except that, in case of a claim brought in a state where a provision is made for separate award of legal fees and costs, the limit will be the sum of US\$58,000 exclusive of legal fees and costs.

ARTICLE 16 — TIME LIMITS FOR BAGGAGE CLAIMS, PROCESSING OF BAGGAGE CLAIMS, AND TIME LIMITS FOR ALL ACTIONS FOR DAMAGES

16.1 Time limit for Baggage claims

16.1.1 If you, or the person holding the Baggage Check and Baggage Identification Tag with your authority, receives Checked Baggage without complaint, the absence of complaint will be sufficient evidence that the Checked Baggage was received in good condition unless you prove otherwise.

16.1.2 If you want to claim compensation from us for Damage to Checked Baggage, you must notify us as follows:

- (a) if the Damage to Checked Baggage is physical in nature you must notify us in writing within 7 Days of receipt of the Checked Baggage;
- (b) if the Damage consists of total or partial loss of Checked Baggage you must notify us in writing within 7 Days of the date the Checked Baggage arrived or should have arrived;
- (c) if you want to claim compensation from us for delay of Checked Baggage, you must notify us in writing within 21 Days from the date the Baggage was placed at your disposal.

16.2 Processing of Baggage claims

16.2.1 All claims for compensation for Damage to Baggage must be accompanied by an itemised list identifying each affected item by description, manufacturer and age, together with proof of purchase or ownership for all such items. Proof of purchase will not be required in relation to any item which costs less than US\$5 (or National Currency Equivalent), or is more than 5 years old and has a claims value of less than US\$50 (or National Currency Equivalent).

16.2.2 In the case of a compensation claim concerning physical damage to Baggage, you must retain and, if requested by us, let us examine the affected Baggage so that we may assess the nature, extent and repairability of that damage.

16.2.3 If you wish to claim the cost of replacement of an individual item which forms part of a claim for compensation for Damage to Baggage, you must consult us before you incur such cost otherwise we may not include the cost in any compensation payable. This requirement will not apply where the total cost of replacement items does not exceed US\$50 or the National Currency Equivalent. Proof of purchase of all replacement items must accompany your claim. Proof of purchase will not be required in relation to any item which costs less than US\$5 (or National Currency Equivalent).

16.2.4 For all claims for compensation concerning Baggage, you must provide us with any information we may request to assess the eligibility of your claim for compensation and the amount of any compensation payable.

16.2.5 If required by us, you will sign a statement of truth regarding the facts of your claim for Damage to Baggage before we pay any compensation to you.

16.2.6 Failure by you to fully comply with the relevant requirements of Article 16.2 may adversely affect the amount of any compensation to which you may be entitled.

16.3 Time limit for all actions for damages

You will have no right to compensation for any Damage if an action is not brought within 2 years of the date of your arrival at the place of destination, or the date on which the aircraft was scheduled to arrive, or the date on which the carriage stopped.

ARTICLE 17 — OUR REGULATIONS

Some aspects of your carriage may be governed by our Regulations in addition to these Conditions of Carriage. Wherever applicable, you must obey our Regulations (but see Article 2.4 for what happens if these Conditions of Carriage are inconsistent with any of our Regulations). We have Regulations concerning, for example, unaccompanied children, pregnant women, disabled Passengers, sick Passengers, carriage of animals (including service animals), restrictions on use of electronic devices on board aircraft, forbidden items in Baggage and limits on the size and weight of Baggage. Copies of our Regulations are available from us on request.

ARTICLE 18 — GENERAL

18.1 We will use reasonable efforts to make correct decisions about the interpretation of pertinent facts and applicable laws, regulations, orders or governmental policy for the purposes of Article 7, Article 11, Article 13 and this Article 18. Sometimes such decisions may have to be made in circumstances where limited time is available and no proper opportunity exists to carry out any or sufficient enquiries. As a result, any such decision made by us will be final and binding on you even if subsequently proved to be incorrect.

18.2 Where we expressly state in these Conditions of Carriage that you must comply with applicable law or applicable governmental, ICAO or IATA requirements, you must make sure that you comply with such applicable law or requirements at all times and especially on the date or dates of your carriage.

18.3 All dates and periods of time referred to in these Conditions of Carriage will be ascertained in accordance with the Gregorian calendar.

18.4 The title of each Article of these Conditions of Carriage is for convenience only, and is not to be used for interpretation of the text.

18.5 Except as expressly provided in these Conditions of Carriage, we will have no liability to you for any liability, loss or damage incurred by you arising from the performance or non-performance of our services (however arising) or any contract between us unless such exclusion is prohibited by law.

18.6 We will have no liability to you in the event of any circumstances beyond our control except as expressly set out otherwise in these Conditions of Carriage.

18.7 Circumstances beyond our control may include war, threat of war, riots, civil disturbances, terrorist activity and its consequences, industrial disputes, natural and nuclear disasters, governmental actions or orders (of any governmental or regulatory department, authority or body), fire, epidemics, health risks and pandemics, unavoidable and unforeseeable technical problems with the aircraft or other equipment, closed or congested airports, traffic issues, hurricanes, inclement weather and other actual or potential severe weather conditions.

18.8 Any claim brought against us or any agent of Emirates arising from these Conditions of Carriage or any products and services provided by us (including, without limitation the performance or non-performance of any flights or carriage) will only be brought in a party's capacity as an individual and not as a plaintiff or class member in any purported class or representative proceeding.

18.9 We are not and do not accept liability as a common carrier, and we reserve the right to refuse to enter into a contract of carriage to carry you or your baggage.

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